

section 1033.5(a)(1). (2) the deposition costs for logistics, processing and electronic files for video recording and transcription for the deposition of defendant's person most knowledgeable Joseph Kanyak dated December 13, 2024 is reasonable and necessary given the type of case under the Song-Beverly Act. Further the second cost for the deposition of plaintiff dated June 6, 2025 is warranted and reasonable. The Court finds this Cost reasonable and recoverable under Code of Civil Procedure section 1033.5(a)(3)(A). (3) The Court finds subpoena notices as a reasonable for preparation of the case under section (a)(4). (4) the other costs for courtesy copies and remote appearance are recoverable under section (a)(1), (14),(15), and (16). Based on the foregoing, the Court will award the costs requested.

IV. CONCLUSION

Based on the foregoing, the Defendant's motion to tax cost is DENIED and costs are awarded in the amount of \$6,431.12.

The Court ORDERS that upon proof that the defendant paid \$5,000.00 in fees and cost, that amount is to be offset in light of these motions for fees and costs to preclude double recovery for fees and motions.

The Court will prepare the formal Order.

Calendar Line # 2

Case Name LVNV Funding LLC vs Sairoop Dasaraju

Case No. 24CV44065

Motion to Enter Judgment Pursuant to Default

I. BACKGROUND

Before the court is a collections case stemming from Plaintiff LVNV Funding LLC ("LVNV") May 29, 2024 Complaint alleging two causes of actions, including breach of contract and money lent, paid or expended against Defendant Sairoop Dasaraju ("Dasaraju"). LVNV acquired the original loan from WebBank and now stands as the debt collector. Defendant Dasaraju filed an answer on September 23, 2024. On October 24, 2024, the parties filed a notice of settlement.

On January 22, 2026, Plaintiff LVNV filed this motion to enter judgment pursuant to the defendant's default under settlement and release agreement under Code of Civil Procedure section 664.6. The motion was accompanied by a proof of service indicating mail service to the debtor/Defendant Dasaraju on that same date.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the moving papers, including the notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 3 pages); Declaration of Spencer Penuela and attached Exhibits 1-3 (totaling 14 pages); proof of service and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 664.6: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6).

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37). Accordingly, “parties” under section 664.6 means the litigants themselves, not their attorneys. (*Levy v. Superior Court* (1995) 10 Cal.4th 578, 586 (holding “we conclude that the term ‘parties’ as used in section 664.6 means the litigants themselves, and does not include their attorneys of record.”)). Additionally, the settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 985).

“Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (*Weddington Prods., Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809). When ruling on a section 664.6 motion, the trial court acts as a trier of fact to determine whether a settlement has occurred, which is also an implicit authorization for the trial court to interpret the terms and conditions to settlement. (*Id.*) The court may not “create the material terms of a settlement,” and must instead decide on what terms the parties agreed upon. (*Id.*; *Terry v. Conlan* (2005) 131 Cal.App.4th 1445, 1460; *Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360; *Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 565-566). “In acting upon a section 664.6 motion, the trial court must determine whether the parties entered into a valid and binding settlement of all or part of the case. In making this determination, trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone.” (*Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994).

III. ANALYSIS

Here, Plaintiff LVNV asserts that the parties entered into a settlement agreement pursuant to Code of Civil Procedure section 664.6 on October 2, 2024. (Exhibit 1 attached to Declaration of Penuela). The Plaintiff filed a notice of settlement. (Exhibit 2 attached to Declaration of Penuela). The total settlement agreement was for Defendant Dasaraju to pay Plaintiff \$6,325.05 for the account balance. (Declaration of Penuela ¶ 8). Under the stipulation, the defendant should have paid \$3,000.00, but only rendered payments of \$400.00. (*Id.*, ¶6). The agreement also addressed that failure to comply with the payment schedule may result in a default. (Exhibit 1 attached to Declaration of Penuela). The written settlement agreement indicated the total amount, scope, and payment terms of the settlement. The settlement agreement was signed by all of the parties to the agreement and filed with the Court. (*Id.*). On November 24, 2025, Plaintiff sent the defendant a letter seeking payment of the balance and reiterated the terms of the agreement. (Exhibit 3 attached to Declaration of Penuela). Thus, Plaintiff has met its burden.

Plaintiff seeks damages of \$6,325.05, which is the agreed account balance amount from the settlement and the amount stated in its Complaint with a \$400.00 credit for a total outstanding principal of \$5,925.05. (*Id.*). (Declaration of Penuela ¶ 8). Plaintiff seeks costs in the amount of \$387.70 comprised of the following: \$225.00 filing and motion fees, \$5.20 for E-filing, \$147.10 for service processing, and \$10.40 in E-filing. (*Id.*). In total, Plaintiff seeks \$6,312.75. (*Id.*).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of

Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to enter judgment in favor of Plaintiff in the amount of \$6,312.75 against Defendant Dasaraju. The Court will prepare the Order.

Calendar Line # 3

Case Name Douglas Gabriel vs Donna Cutuli

Case No. 24CV451853

Motion to Deposit Bond Amount; Cancel and Exonerate Bond; Discharge Liability; Attorney's Fees and Cost; and Dismissal

I. BACKGROUND

This construction defect breach of contract case stems from Plaintiff/Cross-Defendant Douglas Gabriel ("Gabriel") filing a Complaint on November 18, 2024 alleging five causes of actions concerning defects on remodeling work performed at 1942 Abinante Lane, San Jose, California 95124 ("Subject Property."). (Complaint). On May 6, 2025, Plaintiff filed a First Amended Complaint. Defendant/Cross Complainant Donna Cutuli ("Cutuli") filed a Cross-Complaint was filed against Cross Defendant DNG Builders Group LLC ("DNG"). Cross-Complainant alleges that Defendant The North River Insurance Company ("North River") are liable to Cutuli in the full amount of a \$25,000.00 bond. Cross Defendant DNG, the bond principal disputes the Cross-Complainant's claims. North River issued a contractor's licensing bond in the amount of \$25,000.00 (No. 04- CF622534)("Bond"), effective October 4, 2023, with a cancellation date of September 4, 2025 (Declaration of Clair Nail; Exhibit 1).

On January 5, 2026, Defendant Cutuli filed a notice of entry of judgment.

On February 13, 2026, Defendant North River filed this motion to deposition bond amount; cancel and exonerate bond; discharge liability; and for attorney fees and cost; and to be dismissed. The motion was accompanied by a proof of service indicating electronic mail service the plaintiff's counsel and parties on February 12, 2026. Prior to filing the motion, North River met-and-conferred with Cross-Defendant, bond principal, and counsel for all parties about entering a stipulation rather than incurring time and cost for this present motion. Although Cross-Complainant agreed, North River did not receive a response from the bond principal.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

On February 27, 2026, Defendant Cutuli filed a notice of non-opposition of the North River's motion.

The Court has carefully reviewed the moving papers, notice and memorandum of points and authorities, and Declaration of Andrew Haas (totaling 11 pages); Declaration of Clarisa Nail and attached Exhibit 1; Defendant Cutuli's notice of non-opposition (totaling 2 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 386.5 provides: